

Before the  
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-12

DOLLAR GENERAL LOGISTICS, LLC

v.

YANG MING MARINE TRANSPORT CORP.

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**COMPLAINANT DOLLAR GENERAL LOGISTICS, LLC'S  
MOTION TO FILE UNDER SEAL COMPLAINANT'S  
APPENDIX TO THE OPENING BRIEF**

Pursuant to Rule 5 of the Federal Maritime Commission's (the "Commission") Rules of Practice and Procedure (the "Rules"), 46 C.F.R. § 502.5, and the Protective Order entered by the Presiding Officer in this case on September 16, 2025, *see* Dkt. 17 (the "Protective Order"), Complainant Dollar General Logistics, LLC ("Complainant" or "Dollar General"), by and through its undersigned attorneys, respectfully moves for an order permitting Complainant to file under seal with the Presiding Officer unredacted copies of its Appendix to the Opening Brief ("Appendix," or the "Subject Filings"), filed contemporaneously herewith, and to file on the public docket of this case redacted copies of the Subject Filings. Complainant's counsel conferred with Respondent's counsel prior to the filing of this motion, and Respondent does not consent to this motion. *See* Declaration of J. Lee Hill, dated September 23, 2026 (the "Hill Declaration"), ¶¶ 5–6, filed contemporaneously herewith.

## LEGAL FRAMEWORK

The Subject Filings are being filed contemporaneously with the instant motion pursuant to the Presiding Officer's August 20, 2026 Order on Motion to Amend Complaint and Joint Motion to Extend Deadlines in this action.

Under Commission Rule 5(b), a motion for confidential treatment should specify the information in a filing for which protection is sought and show good cause by demonstrating "the information is a trade secret or other confidential research, development, or commercial information pursuant to § 502.141(j)(1)(vii)." 46 C.F.R. § 502.5(b). The Presiding Officer's July 9, 2025 Initial Order in this action (Dkt. 9) (the "Initial Order") instructs that a motion justifying confidential treatment must accompany any confidential information filed as part of briefing on the merits, must identify each item for which protection is sought, and must show good cause for its protection. Initial Order ¶ 32. The Initial Order further instructs that requests for confidential treatment of exhibits be organized in a confidential request table, by Bates number, identifying (1) the Bates range for each request, listed in the order of the Bates numbering used for the parties' appendices; (2) the document's description; (3) whether confidential treatment is requested for the entirety of the Bates range or only for certain marked material; and (4) the legal basis for the request. Initial Order ¶ 38.

The Protective Order agreed to by the parties and entered by the Presiding Officer in this case establishes the standard for confidentiality protection of documents produced in discovery in this case. *See* Consent Motion for Entry of Protective Order, Dkt. 16 (Sept. 15, 2025) (the "Protective Order"); Order Granting Motion for Entry of Protective Order, Dkt. 17 (Sept. 16, 2025) (Crovella, A.L.J.) (entering Protective Order as modified); Protective Order ¶ 2 (defining "Confidential Information" as "any information that is commercially sensitive and is not publicly

known, including information provided by third parties to the producing party or non-party with the expectation that the information remain confidential”); *id.* ¶ 3 (defining “Attorneys Eyes Only” material as “any information or material whose disclosure to anyone other than outside counsel has a substantial probability of jeopardizing the producing party or non-party’s competitive business interests or the competitive or privacy interests of the producing party or non-party’s suppliers, service providers, customers or clients, or of an individual party in this proceeding”).

### **REQUEST FOR CONFIDENTIAL TREATMENT AND LEAVE TO FILE UNDER SEAL**

Complainant’s Subject Filings filed herewith contain and refer to material designated by Complainant as Confidential or Attorneys’ Eyes Only (“AEO”) pursuant to the Protective Order (the “Confidential Materials”). Consistent with paragraph 38 of the Initial Order, the following is a table setting out, for each item of the Confidential Materials, the Bates range, the document’s description, whether confidential treatment is requested for the entirety of the Bates range or only for information indicated, and the basis for the confidentiality request:<sup>1</sup>

| <b>Document</b>                                                                                                                      | <b>Bates/Appendix Range</b> | <b>Description</b>    | <b>Scope of Treatment Sought</b>                           | <b>Basis for Confidentiality Request</b>                                                        |
|--------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|-----------------------|------------------------------------------------------------|-------------------------------------------------------------------------------------------------|
| Ibrahim, Meshel<br>Deposition Transcript,<br>Dollar General Logistics, LLC<br>v. Yang Ming Marine<br>Transport Corp. (April 8, 2026) | APP-443-474                 | Deposition Transcript | Information indicated<br><br>(Ibrahim Dep. Tr. 59:24-60:2) | Designated portions contain non-public commercially sensitive service contract rates and terms. |

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<sup>1</sup> Citations to “APP-“ refer to DG’s Appendix, filed concurrently herewith. In addition to Bates number ranges, the Confidential Materials chart includes the Confidential Materials’ respective Appendix number ranges. Not all of the Confidential Materials have been assigned Bates numbers; for such documents, the Confidential Materials chart includes those documents’ respective Appendix numbers.

| <b>Document</b>                                                                                                          | <b>Bates/Appendix Range</b>              | <b>Description</b>    | <b>Scope of Treatment Sought</b>                            | <b>Basis for Confidentiality Request</b>                                                        |
|--------------------------------------------------------------------------------------------------------------------------|------------------------------------------|-----------------------|-------------------------------------------------------------|-------------------------------------------------------------------------------------------------|
| Kwok, Raymond Deposition Transcript, Dollar General Logistics, LLC v. Yang Ming Marine Transport Corp. (April 20, 2026)  | APP-621-656                              | Deposition Transcript | Information indicated<br><br>(Kwok Dep. Tr. 22:10-20)       | Designated portions contain non-public commercially sensitive service contract rates and terms. |
| Morris, Chelsea Deposition Transcript, Dollar General Logistics, LLC v. Yang Ming Marine Transport Corp. (April 9, 2026) | APP-889-945                              | Deposition Transcript | Information indicated<br><br>(Morris Dep. Tr. 143:25-144:5) | Designated portions contain non-public commercially sensitive service contract rates and terms  |
| Exhibit 43                                                                                                               | DGPMC-0001759-1780<br><br>APP-1313-1334  | Service Contract      | Entirety                                                    | Non-public commercially sensitive service contract details, including rates and terms           |
| Exhibit 46                                                                                                               | DGPMC-0001937-1939<br><br>APP-1338-1340  | Email correspondence  | Information indicated                                       | Non-public commercially sensitive service contract details, including rates and terms           |
| Exhibit 48                                                                                                               | DGPMC-0017450-17454<br><br>APP-1342-1347 | Email correspondence  | Entirety                                                    | Non-public commercially sensitive service contract details, including rates and terms           |

| <b>Document</b> | <b>Bates/Appendix Range</b>                        | <b>Description</b>   | <b>Scope of Treatment Sought</b> | <b>Basis for Confidentiality Request</b>                                                                                                         |
|-----------------|----------------------------------------------------|----------------------|----------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------|
| Exhibit 49      | DGPMC-0004898-APP-1348                             | Email correspondence | Entirety                         | Non-public commercially sensitive service contract details, including rates and terms                                                            |
| Exhibit 50      | DGPMC-0009260-9263 APP-1349-1352                   | Email correspondence | Information indicated            | Non-public commercially sensitive service contract details, including rates and terms                                                            |
| Exhibit 65      | DGPMC-0051980-51981 APP-1436-1437                  | Email correspondence | Entirety                         | Non-public commercially sensitive service contract details, including rates and terms                                                            |
| Exhibit 67      | DGPMC-0084151-84171 APP-1439-1459                  | Service Contract     | Entirety                         | Non-public commercially sensitive service contract details, including rates and terms                                                            |
| Exhibit 68      | DGPMC-0084151-84171 (Native Version) APP-1460-1480 | Word document        | Entirety                         | Non-public commercially sensitive service contract details, including rates and terms                                                            |
| Exhibit 69      | DGPMC-0084151 APP-1481                             | Excel Spreadsheet    | Entirety                         | Rate sheet introduced at the Kwok deposition containing non-public commercially sensitive pricing data; also underlies McCown Appendices C and D |

| <b>Document</b> | <b>Bates/Appendix Range</b>             | <b>Description</b>                          | <b>Scope of Treatment Sought</b> | <b>Basis for Confidentiality Request</b>                                                                     |
|-----------------|-----------------------------------------|---------------------------------------------|----------------------------------|--------------------------------------------------------------------------------------------------------------|
| Exhibit 73      | APP-1554-1559                           | Expert Report of John D. McCown, Appendix C | Entirety                         | Appendix C to the Expert Report of John D. McCown, containing non-public commercially sensitive pricing data |
| Exhibit 74      | APP-1560-1729                           | Expert Report of John D. McCown, Appendix D | Entirety                         | Appendix D to the Expert Report of John D. McCown, containing non-public commercially sensitive pricing data |
| Exhibit 75      | DGPMC-0004159<br><br>APP-1730           | Excel Spreadsheet                           | Entirety                         | Document underlying McCown Appendices C and D, containing non-public commercially sensitive pricing data     |
| DGPMC-0001110   | DGPMC-0001110-1111<br><br>APP-2314-2315 | Email correspondence                        | Information indicated            | Non-public commercially sensitive commercial information, including service contract rates and terms         |
| DGPMC-0001296   | DGPMC-0001296-1299<br><br>APP-2316-2319 | Email correspondence                        | Information indicated            | Non-public commercially sensitive commercial information, including service contract rates and terms         |

| <b>Document</b> | <b>Bates/Appendix Range</b>              | <b>Description</b>                                                              | <b>Scope of Treatment Sought</b> | <b>Basis for Confidentiality Request</b>                                                                |
|-----------------|------------------------------------------|---------------------------------------------------------------------------------|----------------------------------|---------------------------------------------------------------------------------------------------------|
| DGPMC-0002271   | DGPMC-0002271-2273<br><br>APP-2320-2322  | Email correspondence                                                            | Information indicated            | Non-public commercially sensitive commercial information, including service contract rates and terms    |
| DGPMC-0002728   | DGPMC-0002728-2729<br><br>APP-2323-2324  | Email correspondence                                                            | Information indicated            | Non-public commercially sensitive commercial information, including service contract rates and terms    |
| DGPMC-0090079   | DGPMC-0090079-90087<br><br>APP-4456-4464 | Declaration of Brian D. Haug, dated September 23, 2026 (the “Haug Declaration”) | Entirety                         | Document describing DG Lost Profits Analysis, containing non-public commercially sensitive pricing data |
| DGPMC-0090088   | DGPMC-0090088<br><br>APP-4465            | Exhibit A to Haug Declaration (the “DG Lost Profits Analysis”)                  | Entirety                         | Document underlying DG Lost Profits Analysis, containing non-public commercially sensitive pricing data |

Good cause exists for the confidential treatment of the Confidential Materials. The Confidential Materials are subject to the Protective Order in this action and have been designated by Complainant as either Confidential or AEO pursuant to that Protective Order, and Complainant believes that the nature and content of each of the Confidential Materials is consistent with its

respective confidentiality designation under the Protective Order. *See* Hill Decl. ¶ 6. Non-public commercially sensitive pricing data, service contract rates and terms, and port-pair volume information under Complainant's service contract with Respondent are confidential commercial information within the meaning of 46 C.F.R. §§ 502.5(b) and 502.141(j)(1)(vii).

Notably, the Subject Filings include many other documents that Complainant originally designated either Confidential or AEO pursuant to the Protective Order. In an effort to comply with the strict, narrow requirements for filing papers under seal, Complainant reviewed each such document and has withdrawn its designations over the majority of these documents for purposes of the Subject Filings. *See* Hill Decl. ¶¶ 3-4. These documents, which appear in the public Appendix filed herewith, may continue to bear their original Confidential or AEO stamps in the form they were originally produced, but are nonetheless part of the public record.

Consistent with paragraphs 34 through 36 of the Initial Order, Complainant's proposed redactions of the Confidential Materials are highlighted in yellow throughout the confidential version of the Subject Filings, and the public version of the Subject Filings clearly indicates all omissions while maintaining pagination and depiction of text identical to the confidential version. Complainant is contemporaneously filing both confidential and public versions of the Subject Filings, appropriately labeled.

## CONCLUSION

Consistent with the requirements of the Protective Order and the Initial Order in this case, and for good cause shown, Complainant seeks by the instant motion leave to file its Subject Filings under seal and to file appropriately redacted copies of the Subject Filings on the public docket of this proceeding.

Dated: September 23, 2026

Respectfully submitted,

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### **Certificate of Service**

I hereby certify that I have this day caused to be served the foregoing document upon Respondent Yang Ming Marine Transport Corp. by emailing a copy to its counsel of record listed below:

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Dated: September 23, 2026

/s/ J. Lee Hill  
J. Lee Hill  
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